



File No.: EXP202406686 (PA/00016/2024)

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) on March 29, 2024, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The claimant states that they rented a property located in the town of Xixona, province of Alicante, through the website <http://www.sicucasa.es>, whose owner is B.B.B., the respondent. The claimant further states that, on the aforementioned website, through which they proceeded to rent the property, there is no reference whatsoever to their data protection policy, which deprives them of the possibility of exercising their rights.

Along with the complaint, the following documentation is provided:

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Burofax dated 03/07/2024 sent by the verbal representative of the claimant to the respondent. The burofax communicates the claimant's intention to withdraw from the lease contract that binds them to the respondent. It is indicated that this is due to the respondent's failure, in their capacity as landlord, to urgently carry out various repairs in the claimant's property that are necessary to ensure its habitability in accordance with the provisions of Article 21 of Law 29/1994, of November 24, on Urban Leases and Article 1554.2 of the Civil Code.

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Burofax dated 03/27/2024, sent by the verbal representative of the claimant to the respondent, reiterating what was stated in the previous burofax dated 03/07/2024.

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Copy of a complaint filed by the claimant on 03/28/2024, before the Command of the Civil Guard of Xixona for a crime of damage. In the complaint, the claimant states that the property they have rented in the town of Xixona is in unsanitary conditions for living and that, having informed the real estate agency SICU CASA on several occasions, they have ignored the problem. Furthermore, the claimant states that they have requested the return of the amounts of the deposit and others without having received a response. They also add that this situation has exacerbated their health problems.

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Copy of a medical report of the claimant dated 03/07/2024 reflecting their state of health.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent party, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of postal notification, resulting in "Returned to Sender due to incorrect address" on 16/05/2024. The notification was reiterated by certified postal mail, resulting in "Returned to Sender due to Excess" (Not collected at office) on 05/08/2024: 1st Delivery Attempt on 24/07/2024 resulted in "absent." 2nd Delivery Attempt on 26/07/2024 resulted in "absent." A notice was left in the mailbox.

THIRD: On June 29, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On October 29, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent party for the alleged infringement of Article 13 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.b) of the GDPR.

The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in the LPACAP by means of certified postal mail, was returned as "absent"; it was reiterated by the same means, and notification was made on 14/11/2024.

FIFTH: On November 27, 2024, a written statement of allegations was received from the respondent party in which, in summary, the following considerations were made:

"First. – Alleged infringement of Art. 13 of the GDPR

(...). However, we must not confuse domain with website, as there has NEVER been any webpage published under that domain. If you access it, you will see a simple landing page that does not allow any type of interactivity, does not present any field for data collection, nor does it even include external links, cookies, or a simple contact email address. This landing page constitutes the only 'content' that has been published in relation to that domain since it was contracted. A screenshot is attached as Doc. 1.

The first contact that the complainant had with me was on (...), through the real estate portal Idealista, and not through the website sicucasa.es, as this was simply impossible, as I have just mentioned. All subsequent communications were carried out through phone calls and WhatsApp. Therefore, it is evident that the complainant is not telling the truth, as he neither saw the property he rented published on sicucasa.es, nor provided any data or documentation through that website, let alone contracted any service, as he tries to make believe. And all of this is simply because the website has not been operational at any time since the domain was contracted. I provide as Doc. 2 a literal transcription of the..."

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first messages exchanged with the claimant via WhatsApp, in which they were informed, through a link to the Idealista website, about the details of the property that they subsequently rented.

The documentation provided via WhatsApp to justify the necessary solvency for the rental of the property in which they were interested was not theirs, but rather that of their partner. This personal documentation was transferred to a personal computer and stored locally, being deleted immediately from WhatsApp. I submit as Doc. 3 an excerpt from the chat on this platform that proves that the means used by the claimant to send the documentation was WhatsApp and not the website www.sicucasa.es, as well as that this documentation was subsequently deleted from it.

Both the claimant and their partner were informed prior to the provision of their personal data that such data was essential for the analysis of their economic solvency, and that it would be used solely for the purpose of determining whether they were suitable for the rental of the property in which they were interested, consenting de facto from the moment they provided it.

The personal data of the claimant has not been transferred to third parties nor used for any other purpose than that previously stated. The legitimacy for this request for information is clearly established from my position as a real estate agent, working under a mandate for the property of a real estate that the claimant and their partner wished to rent.

The claimant has been aware from the very beginning and through all possible means of my identification and contact details, as the person responsible for the custody and analysis of the provided documentation. Evidence of this are the writings sent in my name by the claimant's lawyer, as well as the fact that I am perfectly identified in the present procedure.

Second. – Facts regarding the condition of the rented property.

(...).

CONCLUSIONS

I consider it has been established that the claimant has lied by stating that they were interested in

renting a property after seeing their advertisement published on the site sicucasa.es, as well as that they sent personal documentation through that website, facts that not only did not occur, but were also impossible, given that there has never been any publication under that domain. The claimant has not demonstrated in any way that their rights regarding the protection of their personal data have been compromised, nor how this circumstance may have caused them any type of harm.

Regarding the other facts stated by the claimant, I consider it established that the property was delivered in perfect condition, pending the completion of some purely aesthetic work, which was already being carried out.

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prior to the taking of possession, and of which both he and his partner were fully aware.”

The written allegations are accompanied by the following documentation:

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Doc. 1. Screenshot of the website www.sicucasa.es with the caption “Page under maintenance.”

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Doc. 2. Transcript of a WhatsApp conversation dated 28/07/2023 between 13:10h and 13:50h, between the claimant and SICU CASA Gestión Inmobiliaria, regarding the possible rental of an apartment.

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Doc. 3. Transcript of a WhatsApp conversation dated 28/07/2023 between 13:52h and 17:28h, between the claimant and SICU CASA Gestión Inmobiliaria, in which the claimant provides documentation related to the rental of a property. In the thread of the conversation, there is a message at 13:52h in which the claimant requests the responding party to notify him when they have the documents so that he can delete them for security reasons, as they are private documents. Subsequently, the responding party informs him at 14:00h that they have already downloaded the attached documents and that he can delete them.

The responding party submits this document to prove that the means used by the claimant to send the necessary documentation for the rental of the property was the instant messaging application WhatsApp and that said documentation was deleted.

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Doc. 4. Copy of the communication sent on April 22, 2024, by SICU CASA Gestión Inmobiliaria to the Law Firm (LAL Abogados) of the claimant, in response to a letter dated April 11, 2024. In this communication, the responding party informs about its role as an intermediary in the lease contract that the claimant signed in August 2023 with the property owner and some alleged urgent repairs in the rented property.

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Doc. 5. Image of handwritten notes listing the “Pending Repairs Attic.”

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Doc. 6. Copy of an email dated 28/05/2024, sent by SICU CASA to the email address ***EMAIL.1 regarding the termination of the lease contract signed between the claimant and the property owner of the rented property.

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Doc. 7. Transcript of a WhatsApp conversation held on May 18, 27, and 28, 2024, between SICU CASA Gestión Inmobiliaria and the claimant. The conversation concerns the signing of the termination agreement of the contract and the handover of the keys to the rented property.

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Doc. 8. Copy of the repair estimate for the damages caused by the claimant in the rented property prepared by a construction, renovation, and multi-service company.

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Doc. 9. Copy of the lease contract signed on August 25, 2023, between the claimant and the property

owner of the rented property.

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Doc. 10. Copy of the Resolution from the Delegated Council of Housing and Urbanism of the City Council of Jijona, dated March 27, 2023, stating that the property complies with the technical habitability regulations, adhering to the technical and safety conditions required for its intended use as a dwelling.

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Doc. 11. Copy of the photographic report conducted as an inventory at the rented property at the time of its delivery.

In view of all the actions taken by the Spanish Agency for the Protection of Data in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The respondent is responsible for the website <http://www.sicucasa.es>, a real estate agency through which the claimant rented a property located in the town of Xixona (Alicante), after signing the corresponding lease agreement with the property owner on August 25, 2023.

SECOND: On March 7, 2024, and March 27, 2024, the verbal representative of the claimant sent two burofaxes to the respondent informing them, among other things, of the claimant's intention to withdraw from the lease agreement. As of March 29, 2024, the date the complaint subject to this file was registered with this Agency, there is no record that the respondent replied to these burofaxes.

THIRD: The respondent has responded to the Initiation Agreement with a written statement dated November 27, 2024, in which they inform that no website has ever been published under the domain www.sicucasa.es. They provide, for this purpose, a screenshot of the website www.sicucasa.es with the caption "Page under maintenance." In this regard, it has been verified that access through www.sicucasa.es is not permitted as the page is "Under Maintenance."

FOURTH: It is confirmed, based on the evidence gathered by this Agency, on April 9, 2024, during the admission of the complaint, that the website www.sicucasa.es was operational and contained a contact form that allowed the collection of personal data, specifically, the user's name and email. However, the website lacked a privacy policy or equivalent legal text.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for the Protection of Data is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to the allegations presented

Regarding the allegations made against the initiation agreement of this warning procedure, described in the factual background FIFTH, this Agency verifies that the website www.sicucasa.es is currently "under maintenance." However, this does not invalidate the fact that, at the time of the complaint, the website of the respondent was operational and contained a contact form that allowed the collection of

personal data while lacking the required privacy policy or equivalent legal text.

III

Unfulfilled obligation. Information that must be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, which states:

- "1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:
- a) the identity and contact details of the controller and, where applicable, of its representative;
 - b) the contact details of the data protection officer, where applicable;
 - c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
 - d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
 - e) the recipients or categories of recipients of the personal data, if any;
 - f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.
2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent processing of data:
- a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
 - b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
 - c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent in...

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any time, without affecting the lawfulness of the processing based on consent prior to its withdrawal;

- d) the right to lodge a complaint with a supervisory authority;
 - e) whether the communication of personal data is a legal or contractual requirement, or a necessary requirement for entering into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
 - f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.
3. When the data controller intends to process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

IV

Classification and Qualification of the Infraction

In accordance with the proven facts at this moment of resolution of the warning procedure, it is considered that the respondent is responsible for the website <http://www.sicucasa.es>, a real estate agency through which the claimant rented a property located in the town of Xixona (Alicante). And on that website, no information related to the processing of personal data was offered, as it lacked a privacy policy or equivalent legal text.

The known facts constitute an infraction, attributable to the respondent, according to the provisions of

Article 13 of the GDPR, transcribed in the previous foundation.

Such infraction is classified under Article 83.5.b) of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of data subjects under Articles 12 to 22;”

For the purposes of the statute of limitations for infractions, the infraction attributed prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

Article 72. Infractions considered very serious.

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1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

V

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After that period, it shall expire, and consequently, the file of actions shall occur.

The provisions in the second and third paragraphs of paragraph 2 of this article shall apply in this case. In this case, given the concurrent circumstances, it is deemed appropriate to issue a warning to the respondent for the infraction committed.

Therefore, in light of the above, the Presidency of the Spanish Agency for Data Protection,

RESOLVES:

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FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for a violation of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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